

Your Body, Their Data:

Digital Surveillance and the New Frontier of Reproductive Control

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ABSTRACT

The Supreme Court's decision in *Dobbs v. Jackson Women's Health Organization* has activated a pervasive digital surveillance infrastructure, which is now being weaponized to prosecute reproductive choices. Through an analysis of legal statutes, case law, and a synthesis of reported criminal cases and investigative journalism, this paper diagnoses how the convergence of state trigger bans, an unregulated data broker industry, and advanced algorithmic inference has weaponized personal data - from location history to period-tracking apps - against individuals seeking reproductive healthcare. Drawing on a unique dataset and a technical risk assessment, the paper demonstrates that current legal frameworks like HIPAA are failing to protect against data-driven prosecution. The core finding is that only a prohibited-by-default regulatory standard can address this threat. Consequently, this analysis proposes the "Digital Bodyguard Act", a federal statute that establishes this standard, empowers the FTC with robust enforcement tools, and creates a private right of action. Designed to navigate a polarized political landscape, the proposal reframes digital privacy as a fundamental liberty, offering a critical shield against the emerging frontier of reproductive control.

Introduction: The Post-Dobbs Surveillance Landscape

The legal battle for reproductive rights in the United States has historically been fought on the terrain of clinical access and physical liberty, not digital privacy. The 1965 case of *Griswold v. Connecticut* established a "right to privacy" within marital relationships, specifically regarding the use of contraception¹. This constitutional principle became the bedrock of later reproductive rights cases like *Roe v. Wade*² and *Planned Parenthood v. Casey*, establishing a federal right to abortion³. Within that legal paradigm, the primary threats were to clinical access, rendering an individual's digital footprint a largely irrelevant concern⁴.

This legal foundation began to be dismantled in June 2022 when the Supreme Court overturned *Roe* and *Casey* with *Dobbs v. Jackson Women's Health Organization*, eliminating the federal constitutional right to abortion and returning its regulation to the states⁵. This immediately activated a patchwork of laws across the country. In states like Texas and Georgia,

¹ *Griswold v. Connecticut*, No. 496 (June 7, 1965).

² *Roe v. Wade* (January 22, 1973).

³ *Planned Parenthood v. Casey*, 505 U.S. 833 (1992).

⁴ "Historical Abortion Law Timeline: 1850 to Today," *Planned Parenthood*, accessed February 20, 2026, <https://www.plannedparenthoodaction.org/issues/abortion/abortion-central-history-reproductive-health-care-america/historical-abortion-law-timeline-1850-today>.

⁵ *Dobbs v. Jackson Women's Health Organization*, 597 U.S. 215 (2022).

so-called “trigger bans” - pre-written, dormant statutes designed to take effect upon Roe’s fall - immediately criminalized abortion with limited exceptions, fundamentally altering the legal landscape for patients and providers. This created a nation where a healthcare decision is a protected right in one state and a prosecutable crime in another⁶. Critically, the Dobbs decision opened the door for states to investigate and prosecute individuals, not just providers, for obtaining or seeking an abortion.

The legal environment is further escalated by the proliferation of “fetal personhood” laws. Georgia’s Living Infants Fairness Equality Act demonstrates how a state recognizes “unborn children” as “natural persons” at any stage of development, creating a legal conflict between the rights of the pregnant person and the state’s interest in the fetus⁷. In 2025, the consequences of fetal personhood laws became tragically clear when Adriana Smith, an Atlanta nurse and mother, was declared brain dead early in her pregnancy of her second child. Despite her condition being irreversible, the hospital kept her body on life support for months - against her family’s wishes - to support the gestation of the fetus inside her corpse⁸.

This new prosecutorial reality weaponizes the digital trail people leave in their daily lives. The Health Insurance Portability and Accountability Act of 1996 (HIPAA) left a significant loophole, as it only applies to healthcare providers, health plans, and their “business associates”, not to the vast ecosystem of health and wellness apps (such as Flo or Clue), search engines, social media platforms, and data brokers that purchase and aggregate user data. Consequently, the digital trail people leave (such as text messages, search histories, period-tracking app data, and location data) is now potential evidence for law enforcement⁹. This gap in protection is a loophole in HIPAA. It creates a two-tiered system for health information: data within the traditional healthcare system is protected, while identical data generated by individuals through apps, searches, and devices is left vulnerable to collection by commercial entities and, by extension, law enforcement. Sensitive information from geolocation data revealing visits to

⁶ Isabel Guarnieri and Elizabeth Nash, “13 States Have Abortion Trigger Bans—Here’s What Happens When Roe Is Overturned | Guttmacher Institute,” Guttmacher Institute, June 6, 2022, <https://www.guttmacher.org/article/2022/06/13-states-have-abortion-trigger-bans-heres-what-happens-when-roe-overturned>.

⁷ Vanessa Romo, “Georgia’s Governor Signs ‘Fetal Heartbeat’ Abortion Law,” NPR, May 7, 2019, <https://www.npr.org/2019/05/07/721028329/georgias-governor-signs-fetal-heartbeat-law>.

⁸ Jess Mador, “Does Georgia’s Fetal ‘personhood’ Law Mean a Pregnant Woman Must Stay on Life Support?,” Health Reporting in the States, NPR, June 7, 2025, <https://www.npr.org/sections/shots-health-news/2025/06/07/nx-s1-5425384/georgia-anti-abortion-fetal-personhood-law-pregnant-woman-life-support>.

⁹ I. Glenn Cohen and Michelle M. Mello, “HIPAA and Protecting Health Information in the 21st Century,” *JAMA* 320, no. 3 (2018): 231–32, <https://doi.org/10.1001/jama.2018.5630>.

clinics to purchase history for pregnancy tests is stripped of federal health privacy safeguards the moment it leaves a doctor's office and enters the digital marketplace¹⁰.

In Nebraska, law enforcement served Meta with a warrant for the Facebook messages of Jessica and Celeste Burgess, who were charged with violating state abortion law. The company provided access to their private data, which was used in the prosecution¹¹. Similarly, a Texas sheriff's office used a network of automated license plate readers to track a woman based on a log entry stating "had an abortion"¹², and in Idaho, police used cell phone location data to investigate a family traveling to Oregon for an abortion¹³. The data broker industry is central to this threat, as demonstrated when data broker Near Intelligence sold location data from nearly 600 Planned Parenthood clinics to anti-abortion groups¹⁴. Furthermore, a Congressional inquiry revealed that major pharmacy chains have routinely turned over patient prescription records to law enforcement without a warrant¹⁵.

The weaponization of digital surveillance extends beyond post-hoc criminal investigation to proactive real-time monitoring of vulnerable populations. A 2025 investigation revealed that U.S. Immigration and Customs Enforcement (ICE) mandates pregnant immigrants in its "Alternative to Detention" program to wear unremovable smartwatches (VeriWatch) that track their location at all times, including during labor and delivery. Hospital staff reported that this surveillance caused medical delays and profound fear, with patients terrified that removing the device for necessary procedures like C-sections would trigger their

¹⁰ Eden Kohane, "Mind the Gaps: Loopholes Digital Health Data Regulations Are Patient Safety Issues," *Light Collective*, September 17, 2024, <https://lightcollective.org/2024/09/17/mind-the-gaps/>.

¹¹ Jesus Jiménez, "Mother Who Gave Abortion Pills to Teen Daughter Gets 2 Years in Prison," *The New York Times*, September 22, 2023, <https://www.nytimes.com/2023/09/22/us/jessica-burgess-abortion-pill-nebraska.html>.

¹² Dave Maass and Rindala Alajaji, "Flock Safety and Texas Sheriff Claimed License Plate Search Was for a Missing Person. It Was an Abortion Investigation.," *Electronic Frontier Foundation*, October 7, 2025, <https://www.eff.org/deeplinks/2025/10/flock-safety-and-texas-sheriff-claimed-license-plate-search-was-missing-person-it>.

¹³ The Associated Press, "A Mom and Son Are Charged in Idaho after a Teen Is Taken to Oregon for an Abortion," *National, NPR*, November 2, 2023, <https://www.npr.org/2023/11/02/1210198143/idaho-abortion-kidnapping-charges-oregon-underage-girlfriend-parental-rights>.

¹⁴ Karen Gullo, "Location Data Tracks Abortion Clinic Visits. Here's What to Know," *Electronic Frontier Foundation*, March 15, 2024, <https://www.eff.org/deeplinks/2024/03/location-data-tracks-abortion-clinic-visits-heres-what-know>.

¹⁵ "Wyden, Jayapal and Jacobs Inquiry Finds Pharmacies Fail to Protect the Privacy of Americans' Medical Records; HHS Must Update Health Privacy Rules," *The United States Senate Committee on Finance*, November 14, 2025, <https://www.finance.senate.gov/chairmans-news/wyden-jayapal-and-jacobs-inquiry-finds-pharmacies-fail-to-protect-the-privacy-of-americans-medical-records-hhs-must-update-health-privacy-rules>.

detention¹⁶. This exemplifies the direct pipeline from commercial monitoring technology to state control over reproductive bodies, creating a climate where seeking essential healthcare is fraught with the threat of punitive surveillance.

The scale of this crisis is significant. A September 2025 report from Pregnancy Justice documents 412 of these pregnancy-related criminalization cases in the first two years after Dobbs. These cases disproportionately target low-income people, with over three-quarters (315) involving low-income people and an overrepresentation of Black (63), and Indigenous people (19). Notably, the vast majority of these prosecutions are not about fetal demise. In 9 cases, the mere consideration of an abortion, evidenced by possession of medication or attempts to obtain one, was weaponized. This data reveals a prosecutorial blueprint focused on surveillance and control and rather than demonstrable harm. A striking 90% of charges (398 of 441 total charges files) were for broad, ill-defined crimes like child abuse, neglect, or endangerment - statutes that overwhelmingly (in 378 of those 441 charges) do not require prosecutors to prove any actual harm to a fetus or infant. This legal framework allows for prosecution based on perceived risk or behavior, turning pregnancy itself into a condition of heightened legal scrutiny. The primary level for this scrutiny is the healthcare system itself: in 64% of cases (264 of 412), the information used to initiate prosecution was obtained or disclosed within a medical setting. Furthermore, substance use was the sole allegation in the majority of cases (268), underscoring how the criminalization of addiction is being mapped directly onto pregnancy¹⁷. This pattern reveals a systemic pipeline where the clinic room becomes the source of evidence, the courtroom the site of punitive judgement, and reproductive healthcare itself a gateway to state surveillance.

While this data reveals a prosecutorial pipeline originating in clinical settings, the same investigative logic is being applied with even greater force in the commercial digital ecosystem, where two technical capabilities, data re-identification and algorithmic inference, create a pervasive surveillance architecture. The data broker industry, which operates largely unregulated at the federal level¹⁸ and forms the backbone of the digital surveillance threat,

¹⁶ Johana Bhuiyan, "ICE Is Using Smartwatches to Track Pregnant Women, Even during Labor: 'She Was so Afraid They Would Take Her Baby,'" Technology, *The Guardian*, December 10, 2025, <https://www.theguardian.com/technology/2025/dec/10/ice-tracking-pregnant-women>.

¹⁷ "Pregnancy Justice Shares New Data on Pregnancy-Related Criminal Charges in the First Two Years Since Dobbs," *Pregnancy Justice*, September 30, 2025, <https://www.pregnancyjusticeus.org/press/new-data-on-pregnancy-related-criminal-charges-in-the-first-two-years-since-dobbs/>.

¹⁸ "Expert Warns Data Brokers Profit from Unregulated Surveillance," House Committee on Energy and Commerce, accessed February 20, 2026, <https://energycommerce.house.gov/posts/energycommerce.house.gov>.

aggregates and sells profiles on virtually every U.S. adult¹⁹. The weaponization of this data is enabled by two foundational technical realities: the inherent limits of data anonymization and the power of algorithmic inference.

First, the inherent identifiability of so-called anonymized data: a seminal 2013 study found that 95% of individuals could be uniquely re-identified from their location data using only four geospatial data points²⁰. This risk is operationalized in practices like the sale of location data from Planned Parenthood clinics²¹ and the use of automated license plate readers in abortion investigations²². Advances in machine learning and artificial intelligence (AI) have dramatically increased this re-identification risk and enabled sophisticated data linkage and inference²³. AI systems now amplify specific privacy threats, most notably ‘identification’ - the automated linking of identity across data sources - and ‘aggregation’ - the combination of disparate data points to infer sensitive information. While the 2013 study demonstrated the theoretical risk of re-identification²⁴, modern AI-powered tools have operationalized this threat at scale²⁵. Companies now use machine learning to match “anonymized” location trails from millions of devices with public records and social media check-ins²⁶, effectively stripping away anonymity and allowing, for instance, the identification of every device that spent more than 30 minutes at a Planned Parenthood clinic on a given date. The power of these techniques is underscored by research indicating that with contemporary analytical methods, just four auxiliary data points can be sufficient to uniquely identify 95% of individuals within a massive

¹⁹ Tom Kempt, “Tom Kemp | How Data Brokers Profile, Segment, and Score Consumers,” Tom Kemp, accessed February 20, 2026,

<https://www.tomkemp.ai/blog/2023/7/26/how-data-brokers-profile-segment-and-score-us>.

²⁰ Yves-Alexandre de Montjoye et al., “Unique in the Crowd: The Privacy Bounds of Human Mobility,” *Scientific Reports* 3, no. 1 (2013): 1376, <https://doi.org/10.1038/srep01376>.

²¹ “Cellphone Location Data Used to Target Abortion Misinformation to Visitors at 600 Reproductive Health Clinics in 48 States,” ACLU of Massachusetts, February 13, 2024, <https://www.aclum.org/press-releases/cellphone-location-data-used-target-abortion-misinformation-visitors/>.

²² Alajaji, “Flock Safety and Texas Sheriff Claimed License Plate Search Was for a Missing Person. It Was an Abortion Investigation.”

²³ Giles Pratt et al., “Anonymization at Crossroads as AI and Global Laws Pose Hurdles,” December 18, 2025, <https://news.bloomberglaw.com/legal-exchange-insights-and-commentary/anonymization-at-crossroads-as-ai-and-global-laws-pose-hurdles>.

²⁴ de Montjoye et al., “Unique in the Crowd.”

²⁵ Lubarsky, “Re-Identification of ‘Anonymized’ Data,” *Georgetown Law Technology Review*, April 12, 2017, <https://georgetownlawtechreview.org/re-identification-of-anonymized-data/GLTR-04-2017/>.

²⁶ PVML Team, “How Can Companies Prevent AI-Based Re-Identification Attacks?,” *PVML*, March 27, 2024, <https://pvml.com/blog/how-can-companies-prevent-ai-based-re-identification-attacks/>.

dataset²⁷. In the current digital ecosystem, the concept of truly ‘anonymized’ data is increasingly fragile, as fragments of a person’s digital trail can be reassembled with alarming precision.

Second, predictive algorithms can infer sensitive health status from seemingly benign behavioral proxies, a process known as algorithmic inference. Consumer technology like the Oura Ring can detect physiological changes that identify pregnancy before most people know they are pregnant²⁸. Beyond wearables, machine learning models analyze patterns in purchase history, mobility routines, and app usage to create high-fidelity health profiles. A 2025 technical analysis of popular reproductive health apps concluded that standard industry practices - including pervasive data sharing with third-party advertisers and the collection of persistent identifiers like IP addresses - creates a landscape where sensitive health inferences can be made at scale²⁹. This is particularly alarming given that approximately one-third of American women use digital apps to track their menstrual cycles³⁰. This creates a surveillance landscape where a person can be profiled and targeted without ever typing a sensitive search term.

The convergence of these technical capabilities - the ability to re-identify individuals from anonymous data and to infer private health status from behavioral traces - with the post-Dobbs legal landscape transforms the commercial data ecosystem into a forensic tool.

Despite the clear risks, voluntary corporate measures have proven unreliable. A Washington Post investigation, for example, found that Google failed to honor its commitment to automatically delete location data for visits to abortion clinics in approximately half of all test cases³¹.

The federal government has enabled this surveillance environment. The Biden Administration’s 2024 HIPAA Reproductive Health Care Privacy Rule was repealed by the Trump administration and subsequently vacated by the courts in *Purl v. HHS*, removing heightened

²⁷ Andrea Gadotti et al., “Anonymization: The Imperfect Science of Using Data While Preserving Privacy,” *Science Advances* 10, no. 29 (2024): eadn7053, <https://doi.org/10.1126/sciadv.adn7053>.

²⁸ Christopher Borges et al., “Guarding Health Data Privacy in Europe: The Limits and Challenges of Current Regulations,” *European Digital Rights*, n.d., accessed November 5, 2025, <https://edri.org/wp-content/uploads/2023/06/Guarding-Health-Data-Privacy-in-Europe-The-Limits-and-Challenges-of-Current-Regulations.pdf>.

²⁹ Nina Zadushlivy et al., “Exploration of Reproductive Health Apps’ Data Privacy Policies and the Risks Posed to Users: Qualitative Content Analysis,” *Journal of Medical Internet Research* 27 (March 2025): e51517, <https://doi.org/10.2196/51517>.

³⁰ Bridget Kelly and Maniza Habib, “Missed Period? The Significance of Period-Tracking Applications in a Post-Roe America - PMC,” National Library of Medicine, September 8, 2023, <https://pmc.ncbi.nlm.nih.gov/articles/PMC10494721/>.

³¹ Geoffrey A. Fowler, “Google Promised to Delete Sensitive Data. It Logged My Abortion Clinic Visit.,” *The Washington Post*, May 9, 2023, <https://www.washingtonpost.com/technology/2023/05/09/google-privacy-abortion-data/>.

federal protections³². Furthermore, the executive branch has actively reshaped the federal information landscape; a 2025 content analysis documented the systematic removal of evidence-based maternal health resources from womenshealth.gov, deleting content discussing structural racism as a cause of health disparities and promoting ideologies that frame women as vulnerable, thereby creating a perceived need for the digital surveillance evidenced in cases like Burgess³³. This ideological framing of women as inherently vulnerable or in need of protection is not merely rhetorical; it provides a justification for the very surveillance state documented in cases like Burgess. If women are constructed as incapable of making informed reproductive decisions without state oversight, then monitoring their digital lives, whether through data broker purchases, cell phone tracking, or smartwatch mandates, becomes framed as a protective measure rather than a punitive one. Compounding the problem, new federal initiatives, like a proposed Centers for Medicare & Medicaid Services (CMS) health data tracking system, risk creating large-scale targets for law enforcement subpoenas³⁴.

The Supreme Court's decision in Dobbs activated a pre-existing but dormant surveillance infrastructure³⁵. The convergence of state trigger bans, personhood laws, the vast, unregulated data broker industry, and an active federal campaign to obscure health information has created a legal environment where personal digital data is weaponized to investigate, prosecute, and punish individuals for their reproductive choices. The federal government must enact a uniform standard to close the HIPAA loophole and prevent health data from being used as evidence in abortion-related prosecutions.

The Political Coalitions in Conflict

The weaponization of reproductive health data as diagnosed above does not occur in a political vacuum. It is the direct result of a fierce ideological struggle playing out between two powerful coalitions. On one side, a diverse alliance of healthcare, privacy, and civil liberties advocates who view data protections as an essential component of bodily and medical ethics.

³² Elizabeth Murray and Nicholas White, "Fifth Circuit Dismisses Appeal of Decision Vacating HIPAA Reproductive Health Privacy Rule—Signaling the End of the Purl Case," American Bar Association, October 6, 2025, https://www.americanbar.org/groups/health_law/news/2025/signaling-end-purl-case/.

³³ Patricia A. Homan and Susan E. Short, "Rewriting Women's Health: A Content Analysis of the Trump Administration's Revisions to Womenshealth.Gov," *THE LANCET Regional Health - Americas* 51, no. 101288 (n.d.), accessed November 9, 2025, [https://www.thelancet.com/journals/lanam/article/PIIS2667-193X\(25\)00299-6/fulltext](https://www.thelancet.com/journals/lanam/article/PIIS2667-193X(25)00299-6/fulltext).

³⁴ Chantelle Lee and Brian Bennett, "Trump to Launch Private Health Tracking System With Tech Firms," *TIME*, July 30, 2025, <https://time.com/7306647/trump-health-data-medical-records/>.

³⁵ Brynn Drury, "From Roe to Risk: The Sobering Realities of Reproductive Data Privacy in a Post-Roe America," *Journal of Health Care Law and Policy* 28, no. 2 (2025): 127–55, <https://digitalcommons.law.umaryland.edu/cgi/viewcontent.cgi?article=1457&context=jhclp>.

Arrayed against them is a coalition of social conservatives, states' rights advocates, and data industry interests who prioritize fetal personhood, state sovereignty, and commercial freedom, whose collective actions have enabled a dangerous and pervasive surveillance ecosystem. Navigating this highly polarized landscape is the central political challenge that any reform must overcome.

Digital rights and civil liberties organizations form the vanguard of technical and legal defense. The Electronic Frontier Foundation (EFF)³⁶ and The Center for Democracy and Technology (CDT)³⁷ exposes surveillance mechanics, critiques data brokers, and advocates for comprehensive federal privacy legislation. The American Civil Liberties Union (ACLU) bridges the gap between movements, litigating against abortion restrictions while simultaneously launching campaigns that highlight how digital data can be weaponized against vulnerable populations, framing privacy as a fundamental right³⁸. Reproductive rights and justice organizations bring the perspective of those directly targeted. Planned Parenthood calls for corporate data protection and support shield laws³⁹. Pregnancy Justice provides critical evidence through its documentation of hundreds of pregnancy criminalization cases⁴⁰.

Public health and medical associations ground the argument in ethics and patient care. The American Medical Association (AMA)⁴¹ and the American College of Obstetricians and Gynecologists (ACOG)⁴² have condemned the criminalization of reproductive healthcare and oppose laws that turn providers into data conduits for law enforcement. These organizations, and others like them, ground the argument in medical ethics and patient safety.

³⁶ India McKinney and Daly, "EFF to Congress: Here's What A Strong Privacy Law Looks Like," Electronic Frontier Foundation, April 21, 2025,

<https://www.eff.org/deeplinks/2025/04/eff-congress-heres-what-strong-privacy-law-looks?language=ko>.

³⁷ "U.S. Privacy Legislation Archives," Center for Democracy and Technology, April 30, 2025,

<https://cdt.org/area-of-focus/privacy-data/u-s-privacy-legislation/>.

³⁸ Ford Wessler and Crockford, "Impending Threat of Abortion Criminalization Brings New Urgency to the Fight for Digital Privacy | ACLU," *American Civil Liberties Union*, May 17, 2022, <https://www.aclu.org/news/privacy-technology/impending-threat-of-abortion-criminalization-brings-new-urgency-to-the-fight-for-digital-privacy>.

³⁹ Kimball-Katz, "Press Release: Data Privacy Bill Would Strengthen Protections for Reproductive Health Data, Abortion Patients and Providers," Planned Parenthood Advocacy Fund of Massachusetts, Inc, May 6, 2024, <https://www.plannedparenthoodaction.org/planned-parenthood-advocacy-fund-massachusetts-inc/pressroom/data-privacy-bill-would-strengthen-protections-for-reproductive-health-data-abortion-patients-and-providers>.

⁴⁰ "Pregnancy as a Crime: An Interim Update on the First Two Years After Dobbs."

⁴¹ "Opposition to the Criminalization of Self-Managed Abortion," July 6, 2022, <https://www.acog.org/clinical-information/policy-and-position-statements/position-statements/2022/opposition-to-the-criminalization-of-self-managed-abortion>.

⁴² "Confidentiality | AMA-Code," American Medical Association Code of Ethics, accessed November 16, 2025, <https://code-medical-ethics.ama-assn.org/ethics-opinions/confidentiality>.

Legislative and executive branch actors are translating this advocacy into political action. At the federal level, one of the first and more direct legislative responses to the post-Dobbs data threat was the Health and Location Data Protection Act by Senator Warren (D-MA)⁴³, and the My Body, My Data Act by Rep. Sara Jacobs (CA-51) and Senators Mazie Hirono (D-HI) and Ron Wyden (D-OR) seek to ban data brokers from selling health and location data and create a new national privacy standard⁴⁴.

Across the country, governors and legislatures in states like California, Colorado, Illinois, and New York have enacted comprehensive shield laws. These states are natural allies for federal legislation, as it would reinforce their protections and extend similar security to individuals in non-shield states⁴⁵. Their existing laws, such as S.B. 345, California's Abortion Shield Law, which is one of the nation's most comprehensive shield laws that includes prohibitions on state law enforcement sharing information with federal officials⁴⁶, provide a blueprint for effective policy.

The movement for reform faces a formidable opposition coalition that, driven by competing ideologies and financial interests, now holds power at the highest levels of American government. The Heritage Foundation's Project 2025, a comprehensive 900-page presidential transition project, serves as a roadmap for the Trump Administration⁴⁷. Its plans' include enforcing the Comstock Act, which bans the interstate mailing of abortion medication⁴⁸, and reversing FDA approval of medication abortion⁴⁹, actions that would necessitate extensive surveillance.

⁴³ Elizabeth [D-MA Sen. Warren, "S.4408 - 117th Congress (2021-2022): Health and Location Data Protection Act of 2022," legislation, June 15, 2022, 2022-06-15, <https://www.congress.gov/bill/117th-congress/senate-bill/4408>.

⁴⁴ Mazie K. [D-HI Sen. Hirono, "Text - S.1656 - 118th Congress (2023-2024): My Body, My Data Act of 2023," legislation, May 17, 2023, 2023-05-17, <https://www.congress.gov/bill/118th-congress/senate-bill/1656/text>.

⁴⁵ Forouzan, "Shield Laws Related to Sexual and Reproductive Health Care," Guttmacher Institute, July 14, 2025, <https://www.guttmacher.org/state-policy/explore/shield-laws-sexual-and-reproductive-health-care>.

⁴⁶ Natalie Birnbaum, "AHLA - SB 345: California's Abortion Shield Law and the Potential Impact on Medication Abortion Access Nationwide," American Health Law Association, September 29, 2023, <https://www.americanhealthlaw.org/content-library/health-law-weekly/article/cfecb23f-5083-42f7-aa64-f76629905a5d/sb-345-california-s-abortion-shield-law-and-the-po>.

⁴⁷ "Project 2025 Publishes Comprehensive Policy Guide, 'Mandate for Leadership: The Conservative Promise,'" The Heritage Foundation, April 21, 2023, <https://www.heritage.org/press/project-2025-publishes-comprehensive-policy-guide-mandate-leadership-the-conservative-promise>.

⁴⁸ Mabel Felix et al., "The Comstock Act: Implications for Abortion Care Nationwide," *KFF*, April 15, 2024, <https://www.kff.org/womens-health-policy/the-comstock-act-implications-for-abortion-care-nationwide/>.

⁴⁹ Anna Bernstein et al., "How Project 2025 Seeks to Obliterate Sexual and Reproductive Health and Rights," Guttmacher Institute, September 24, 2024, <https://www.guttmacher.org/fact-sheet/how-project-2025-seeks-obliterate-srhr>.

Restrictive state governments create the demand for digital evidence. Governors and legislators in states like Texas, Georgia, and Florida have passed trigger bans and personhood laws that enable the investigation and prosecution of abortion, as seen in *Purl v. HHS*⁵⁰. These states are plaintiffs in federal lawsuits aimed at limiting telehealth access (*Louisiana v. FDA*), overturning privacy rules (*Texas v. HSS*), and restricting interstate travel for care (*Matsumoto v. Labrador*)⁵¹. This coalition's surveillance agenda is not limited to state actors. The ICE smartwatch program, discussed earlier, exemplifies this federal role: a federal agency mandating unremovable tracking devices on pregnant immigrants, instilling fear and delaying necessary medical care⁵².

The data broker industry forms the commercial backbone of the surveillance threat. It collects, analyzes, and sells exhaustive amounts of information on individuals that can reveal intimate details such as movements, habits, and health conditions⁵³. Data brokers use algorithmic tools to make inferences about individuals, lumping them into sensitive categories based on health, ethnicity, religion, or political affiliation⁵⁴. This industry is notoriously resistant to regulation; a study found a majority of registered data brokers in California failed to comply with basic data access laws⁵⁵. Law enforcement and intelligence agencies are key clients, secretly purchasing data to bypass warrant requirements⁵⁶.

In essence, ideologues and federal actors create the political and legal demand for surveillance, state actors translate those ideologies into state laws and investigations that create a market for data, and the data industry supplies the commodity - sensitive data - that fuels the entire system.

The interests of these coalitions clash on several fundamental fronts. The conflict between the concepts of bodily autonomy and fetal personhood represent an irreconcilable legal

⁵⁰ Guarnieri and Nash, "13 States Have Abortion Trigger Bans—Here's What Happens When Roe Is Overturned | Guttmacher Institute."

⁵¹ "State and Federal Reproductive Rights and Abortion Litigation Tracker," Kaiser Family Foundation, November 7, 2025, <https://www.kff.org/womens-health-policy/litigation-involving-reproductive-health-and-rights-in-the-federal-courts/>.

⁵² Bhuiyan, "ICE Is Using Smartwatches to Track Pregnant Women, Even during Labor."

⁵³ "Data Brokers," EPIC - Electronic Privacy Information Center, accessed November 13, 2025, <https://epic.org/issues/consumer-privacy/data-brokers/>.

⁵⁴ Emile Ayuob and Elizabeth Goitein, "Closing the Data Broker Loophole | Brennan Center for Justice," Brennan Center for Justice, February 14, 2024, <https://www.brennancenter.org/our-work/research-reports/closing-data-broker-loophole>.

⁵⁵ Hayley Tsukayama, "Data Brokers Are Ignoring Privacy Law. We Deserve Better," Electronic Frontier Foundation, August 4, 2025, <https://www EFF.org/deeplinks/2025/08/data-brokers-are-ignoring-privacy-law-we-deserve-better>.

⁵⁶ Emile Ayuob and Elizabeth Goitein, "Closing the Data Broker Loophole," Brennan Center for Justice, February 13, 2024, <https://www.brennancenter.org/our-work/research-reports/closing-data-broker-loophole>.

and moral schism. Bodily autonomy is the foundational right to have self-determination over one's own body and life while fetal personhood seeks to grant fertilized eggs and zygotes full constitutional rights, effectively treating the pregnant person as a state-regulated vessel. At its core, this is a conflict over the concept of bodily ownership: bodily autonomy asserts that an individual's body is their own, while fetal personhood effectively treats the pregnant person's body as a vessel that can be regulated and controlled by the state⁵⁷. This chasm is not merely philosophical but physical, underscored by the biological reality that a fetus requires gestation inside another person's body for approximately 24 weeks to achieve a chance of viability outside the womb⁵⁸.

The second main conflict is between federal preemption versus states' rights. Reform advocates argue for a uniform national standard to override conflicting state laws⁵⁹. Opponents champion states' rights to legislate on morality and enforce abortion bans. This is complicated by reformers' support for protective state shield laws, leading them to advocate for a federal 'floor' instead of a 'ceiling' model that sets a baseline standard without preventing states from enacting stronger protections⁶⁰.

An economic conflict pits digital rights advocates against the data broker industry over the very nature of personal information. Organizations like the EFF and CDT frame privacy as a fundamental human right essential for liberty and autonomy⁶¹. The data broker industry operates on the principle that personal data is a tradable commodity with a multi-hundred-billion dollar market⁶². For that industry, any regulation that restricts the collection and sale of data directly threatens their core business model and financial interests.

There are also conflicts between major institutions. Medical associations and public health organizations, such as the AMA and ACOG, are bound by ethical codes that prioritize patient confidentiality and the integrity of the patient-provider relationship⁶³. In restrictive states, however, law enforcement and prosecutors increasingly view health data as potential

⁵⁷ Jessica Valenti, *Abortion: Our Bodies, Their Lies, and the Truths We Use to Win*, 1st ed. (Penguin Random House, 2024).

⁵⁸ G. H. Breborowicz, "Limits of Fetal Viability and Its Enhancement," *Early Pregnancy* 5, no. 1 (2001): 49–50.

⁵⁹ Bryan L. Adkins et al., "Federal Preemption: A Legal Primer," Congress.Gov, May 18, 2023, <https://www.congress.gov/crs-product/R45825>.

⁶⁰ "Health and Reproductive Privacy," EPIC – Electronic Privacy Information Center, accessed November 16, 2025, <https://epic.org/issues/data-protection/health-privacy/>.

⁶¹ McKinney and Daly, "EFF to Congress."

⁶² "Data Broker Market Global Trends, Scope Report 2026," The Business Research Company, February 2026, <https://www.thebusinessresearchcompany.com/report/data-broker-global-market-report>.

⁶³ Am. Med. Assoc. Code Ethics, "Confidentiality | AMA-Code."

evidence for investigations and prosecutions related to abortion⁶⁴. This turns healthcare providers into potential unintentional informants and shatters the essential trust needed for effective medical care.

The path to reform requires navigating this highly polarized landscape. The political battlefield is sharply divided between two powerful coalitions with fundamentally opposing goals. One coalition frames the issue as one of privacy, safety, and bodily autonomy, while the other prioritizes state sovereignty, fetal personhood, and commercial freedom. A successful strategy must be multifaceted, pursuing federal legislation that can pre-empt the most damaging laws while empowering regulatory bodies like the Federal Trade Commission (FTC) with strong enforcement capabilities. The following stage will detail a proposal designed to navigate these entrenched political conflicts.

Policy Proposal: The Digital Bodyguard Act

The most effective path to ending the weaponization of reproductive health data is the passage of a federal statute, the “Digital Bodyguard Act”, which establishes a prohibited-by-default standard for sensitive health data, enforced by a dual mechanism of FTC regulatory action and a private right of action for individuals. A prohibited-by-default standard makes the collection, sale, sharing, or retention of sensitive health data by commercial entities illegal by default. The burden is on the company to ensure a specific data practice is legal by obtaining a user’s explicit, opt-in consent that is informed, granular, and easily revocable.

The necessity of this federal statute is underscored by both the limitations of state-level solutions and the inherently interstate nature of the data broker industry. While state shield laws block data sharing after a request, a federal act will prevent sensitive health related data from being collected in the first place, addressing the problem at its source. Only six states prohibit state law enforcement from providing information to federal officials⁶⁵ and this variation in state law reveals a gap that only a federal law can fill. The proposed Digital Bodyguard Act is designed to work in concert with other emerging federal efforts, such as the HHS Reproductive and Sexual Health Ombuds Act of 2025 (H.R. 5925)⁶⁶, creating a

⁶⁴ Kierra B. Jones, “Stopping the Abuse of Tech in Surveilling and Criminalizing Abortion - Center for American Progress,” Center for American Progress, January 29, 2025, <https://www.americanprogress.org/article/stopping-the-abuse-of-tech-in-surveilling-and-criminalizing-abortion/>.

⁶⁵ Forouzan, “Shield Laws Related to Sexual and Reproductive Health Care.”

⁶⁶ Nikema [D-GA-5. Rep. Williams, “Text - H.R.5925 - 119th Congress (2025-2026): HHS Reproductive and Sexual Health Ombuds Act of 2025,” legislation, November 4, 2025, 2025-11-04, <https://www.congress.gov/bill/119th-congress/house-bill/5925/text/ih>.

comprehensive approach where the HHS Ombuds publicizes threats and the FTC prosecutes them.

Relying on corporate promises or user consent has proven to be a failed strategy, as demonstrated by Google's failure to automatically delete sensitive location data despite its public pledge⁶⁷. The Digital Bodyguard Act learns from this failure by establishing a prohibited-by-default standard that places the legal burden on companies to justify any collection of sensitive health data.

The current political landscape suggests that any viable federal privacy law in the near term is likely to follow a business-friendly, deregulatory model. This means a law resembling the Texas Data Privacy and Security Act (TDPSA), which is enforced solely by the state attorney general and explicitly precludes a private right of action⁶⁸, is a more probable blueprint than one based on California's stronger, citizen-enforceable California Consumer Privacy Act (CCPA)⁶⁹. By limiting enforcement to a single public actor and barring individual lawsuits, the Texas model minimizes compliance burdens and litigation risk for industry, making it far more palatable to the Republican-controlled Congress and the tech sector than the California approach.

The Digital Bodyguard Act builds upon state-level innovation by creating a national standard that protects all citizens, regardless of their zip code. The proliferation of state shield laws in twenty-two states and D.C. demonstrates that data protection is not a partisan or fringe issue, but a mainstream response to a recognized crisis⁷⁰. The cases are also inherently interstate, as evident in court cases about travel (*Matsumoto v. Labrador*, *Yellowhammer Fund v. Marshall*) and telehealth (*Louisiana v. FDA*)⁷¹.

The Act's core provisions are designed to be both comprehensive and enforceable. The Act makes the collection, sale, sharing, or retention of sensitive health data by commercial entities illegal by default. It defines 'sensitive health data' broadly and specifically to include information related to past, present, or future reproductive health, menstruation, fertility, pregnancy, ovulation, contraception, abortion, and crucially, data inferences and precise location data near healthcare facilities. Data inferences refers to any health information derived or inferred from non-health data (such as inferring pregnancy from sleep patterns, location data, or purchase

⁶⁷ Fowler, "Google Promised to Delete Sensitive Data. It Logged My Abortion Clinic Visit."

⁶⁸ "Texas Data Privacy And Security Act," Ken Paxton | Office of the Attorney General, accessed November 10, 2025, <https://www.texasattorneygeneral.gov/consumer-protection/file-consumer-complaint/consumer-privacy-rights/texas-data-privacy-and-security-act>.

⁶⁹ Majorie Richter J.D., "Understanding the California Consumer Privacy Act (CCPA)," Thomson Reuters Law Blog, March 4, 2025, <https://legal.thomsonreuters.com/blog/the-california-consumer-privacy-act/>.

⁷⁰ Forouzan, "Shield Laws Related to Sexual and Reproductive Health Care."

⁷¹ Kais. Fam. Found., "State and Federal Reproductive Rights and Abortion Litigation Tracker."

history). Search history and communications related to seeking this information would also be prohibited. The burden is on the company to ensure a specific data practice is legal by obtaining a user's explicit, opt-in consent that is affirmative, informed, granular, and easily revocable.

To ensure robust enforcement, the Act creates a dual-enforcement mechanism. The FTC is designated as the primary enforcer, granted authority to create rules and levy significant fines. The Act also empowers individuals to bring civil actions, with statutory damages, creating a powerful, distributed deterrent modeled on laws like the Illinois Biometric Act (BIPA)⁷². This dual approach ensures enforcement even during periods of reduced regulatory appetite.

The proposed 'Digital Bodyguard Act' is designed to work in concert with other emerging federal efforts to protect reproductive autonomy, such as the recently introduced HHS Reproductive and Sexual Health Ombuds Act of 2025 (H.R. 5925)⁷³. While the Ombuds would be tasked with public education and coordinating with the FTC on data privacy concerns, the Act provides the specific, statutory prohibitions and enforcement mechanisms necessary to make that coordination effective.

Data covered under this Act can only be disclosed to law enforcement with a warrant based on probable cause for a crime unrelated to reproductive healthcare, preventing its use as a dragnet surveillance tool.

In the 119th Congress, the chances of this bill advancing are incredibly limited, due to Republican control of the House, Senate, and White House⁷⁴. To advance this bill, advocates would need to wait until their legislative allies regain the power to get a vote.

If the Democratic Party can retake the House of Representatives in the 2026 midterms, they will have the leadership power to advance this kind of legislation. This bill would be primarily shaped by two key committees, the most important of which is the House Committee on Energy and Commerce, as it has jurisdiction over consumer protection, health, and telecommunications⁷⁵. The current ranking member, and the likeliest person to become Chair, is Rep. Frank Pallone Jr. (D-NJ), who is a staunch defender of the Affordable Care Act and a supporter of abortion rights⁷⁶. The relevant subcommittees (Subcommittee on Health and the

⁷² "Biometric Information Privacy Act (BIPA)," ACLU of Illinois, August 25, 2025, <https://www.aclu-il.org/campaigns-initiatives/biometric-information-privacy-act-bipa/>.

⁷³ Rep. Williams, "Text - H.R.5925 - 119th Congress (2025-2026)."

⁷⁴ "Party Government Since 1857 | US House of Representatives: History, Art & Archives," History, Art & Archives | United States House of Representatives, accessed November 16, 2025, <https://history.house.gov/Institution/Presidents-Coinciding/Party-Government/>.

⁷⁵ "House Committee on Energy and Commerce," House Committee on Energy and Commerce, accessed November 16, 2025, <https://energycommerce.house.gov/energycommerce.house.gov>.

⁷⁶ "Pallone Calls for Federal Protection of Right to Full Reproductive Health Care Including Abortion | Congressman Frank Pallone," Congressman Frank Pallone, January 23, 2024,

Subcommittee on Innovation, Data, and Commerce), and their likely leaders, would be important and powerful allies in this fight⁷⁷. The second committee is the House Committee on the Judiciary, which would also have jurisdiction due to the bill's implications for criminal procedure and federal pre-emption of state laws⁷⁸. The current ranking member is Rep. Jerrold Nadler (D-NY), who has a strong record on civil liberties and is a key figure in the Trump impeachments, making him another formidable chair and ally⁷⁹.

In the House, there would be many supporters amongst the Democratic party. This would include the original sponsors of related bills, including Rep. Sara Jacobs (D-CA), the lead sponsor of the My Body, My Data Act⁸⁰, and Rep. Ted Lieu (D-CA), sponsor of the Reproductive Data Privacy and Protection Act⁸¹.

On the other side of the aisle in the House, there would be immediate and forceful opposition from members that represent states with restrictive laws. This would include the Republican leadership as well as members from restrictive states who prioritize fetal personhood doctrines and state sovereignty over individual privacy rights.

Even if Democrats win the house, the Senate is considered a much harder lift, with Republicans likely to retain control⁸². This means that the bill would face a steep uphill battle and would need to navigate a more politically complicated process. The relevant committees in the Senate include the Senate Committee on Commerce, Science, and Transportation, which is chaired by Sen. Ted Cruz (R-TX)⁸³, and the Senate Committee on the Judiciary, which is chaired by Sen. Chuck Grassley (R-IA)⁸⁴. Both of these men and other vocal social conservatives are staunch supporters of fetal personhood, state's rights, and conservative gender roles.

<http://pallone.house.gov/media/press-releases/pallone-calls-federal-protection-right-full-reproductive-health-care-including>.

⁷⁷ "U.S. Senate Committee on Commerce, Science, & Transportation," U.S. Senate Committee on Commerce, Science, & Transportation, December 17, 2025, <https://www.commerce.senate.gov/>.

⁷⁸ "Committee on the Judiciary - 119th Congress Profile," Office of the Clerk, U.S. House of Representatives, accessed November 16, 2025, <https://clerk.house.gov/committees/JU00>.

⁷⁹ Nicholas Fandos, "Who Is Jerry Nadler? Co-Lead Impeachment Manager Will Tie Case to Constitution," *The New York Times*, January 15, 2020, <https://www.nytimes.com/2020/01/15/us/politics/who-is-jerry-nadler.html>.

⁸⁰ Sen. Hirono, "Text - S.1656 - 118th Congress (2023-2024)."

⁸¹ Ted [D-CA-36 Rep. Lieu, "Text - H.R.3218 - 119th Congress (2025-2026): Reproductive Data Privacy and Protection Act," legislation, May 6, 2025, 2025-05-06, <https://www.congress.gov/bill/119th-congress/house-bill/3218/text>.

⁸² Shane Goldmacher, "How Democrats Hope to Overcome a Daunting 2026 Senate Map," U.S., *The New York Times*, May 6, 2025, <https://www.nytimes.com/2025/05/06/us/politics/2026-senate-map-democrats-schumer.html>.

⁸³ House Comm. Energy Commer., "House Committee on Energy and Commerce."

⁸⁴ "Members | United States Senate Committee on the Judiciary," accessed November 17, 2025, <https://www.judiciary.senate.gov/about/members>.

The primary sponsors in the Senate are likely to be Sen. Mazie Hirono (D-HI)⁸⁵ and Sen. Ron Wyden (D-OR), who have been leaders on digital privacy and reproductive rights⁸⁶. They would need to work with moderate Republicans to find a path forward, which is a significant political challenge in this political and cultural environment.

The success of this Act depends entirely on robust enforcement, and as such, understanding the political identity of the FTC is crucial. The current Republican chair, Andrew Ferguson, and Commissioners Melissa Holyoak and Mark Meador would likely be hostile to the aggressive regulatory approach the Act mandates⁸⁷. They would seek to narrow its interpretation and limit enforcement actions. However, the political composition of the FTC can change. A future Democratic administration could appoint chairs and commissioners that more align with the goals of the bill. Enforcement efficacy would be contingent on the regulatory priorities of the FTC's leadership, which can vary between administrations.

This Act will need to be messaged and framed carefully by supporters to neutralize opposition. Against data brokers and the tech industry, the argument that this act is a liability shield and a uniform standard that protects compliant companies from the nightmare of complying with dozens of conflicting state laws is likely to be the most successful. It also prevents a patchwork of state laws, which is a common industry complaint. For social conservatives, the reframing of the issue from abortion to fundamental digital liberty positions the Act as a bulwark against a corporate surveillance state that can track all citizens, a message that resonates across the spectrum.

The beneficiaries from this Act will be individuals seeking reproductive healthcare, digital rights advocates, public health researchers, and compliant tech companies that prioritize privacy. It will ensure that trust is restored between patients and providers, between users and digital platforms, and in the validity of the public health care data collected by physicians. The Act will restrict the business model of the data broker industry, who will no longer be able to profit off of the persecution of vulnerable people. It will prevent adversarial state attorneys general from obtaining evidence and vigilante groups from accessing this data via commercial sale.

The Digital Bodyguard Act synthesizes the most effective elements of global best practices into a coherent federal strategy. The Act's prohibited-by-default principle is modeled

⁸⁵ Sen. Hirono, "Text - S.1656 - 118th Congress (2023-2024)."

⁸⁶ U. S. Senate Comm. Finance, "Wyden, Jayapal and Jacobs Inquiry Finds Pharmacies Fail to Protect the Privacy of Americans' Medical Records; HHS Must Update Health Privacy Rules."

⁸⁷ Jung Andy, "FTC Must Reinstate Its Core Mission," Washington Legal Foundation, June 25, 2025, <https://www.wlf.org/2025/06/25/wlf-legal-pulse/ftc-must-reinstate-its-core-mission/>.

on the robust consent requirements of the European Union's General Data Protection Regulation (GDPR), which prohibits the processing of "special category data" (including health information) without explicit, opt-in consent⁸⁸. Similarly, it draws from the proactive, purpose-limiting framework of the United Kingdom's Data Protection Act 2018, which mandates that data collection be lawful, fair, and transparent for a specified purpose⁸⁹. It learns from the failures of corporate self-policing and the gaps in existing laws to create a proactive, enforceable regime. The necessity of a strong, federal privacy law is underscored by the vulnerability of public health information to political shifts. The dismantling of womenshealth.gov demonstrates that without a durable, statutory federal protection, vital health resources and accurate information can be erased by executive fiat⁹⁰. This leaves individuals more reliant on and vulnerable to the very commercial data ecosystem the Digital Bodyguard Act seeks to regulate.

There will be lingering challenges to confront, such as ensuring consistent political will and funding for the FTC as well as adapting to rapidly evolving surveillance technologies. The success of the Act must be measured by a reduction in data-based prosecutions, successful FTC enforcement actions, and a demonstrable increase in public trust in digital health tools. The following stage will detail the specific mechanism for this enforcement, compliance, and assessment.

Implementation and Enforcement

This stage details the specific mechanisms for enforcing the Digital Bodyguard Act, ensuring compliance from regulated entities, and measuring its success in protecting reproductive health data. A law is only as strong as its implementation and therefore, this stage answers the critical "how" questions. Through a multi-pronged strategy of proactive regulatory action, empowered private litigation, transparent monitoring, and periodic congressional review, the Digital Bodyguard Act will be robustly implemented and adaptively managed to end the weaponization of reproductive health data.

The FTC is the nation's primary consumer protection agency with established expertise in regulating unfair and deceptive trade practices, making it the logical enforcer for a law

⁸⁸ "General Data Protection Regulation (GDPR) – Legal Text," Intersoft Consulting, accessed February 23, 2026, <https://gdpr-info.eu/>.

⁸⁹ "Data Protection Act 2018," Legislation.Gov.Uk, Statute Law Database, accessed February 23, 2026, <https://www.legislation.gov.uk/ukpga/2018/12/contents>.

⁹⁰ Homan and Short, "Rewriting Women's Health: A Content Analysis of the Trump Administration's Revisions to Womenshealth.Gov."

targeting commercial data abuses⁹¹. It is an existing enforcer for a law targeting commercial data abuses and its existing authority in the digital ecosystem allows for a more rapid and effective rollout than creating a new, untested agency.

The FTC's specific enforcement actions will include: within 180 days of enactment, the FTC will detail rules to clarify critical definitions, such as 'data inferences' and 'granular consent' and establish standardized compliance procedures that will provide clear, actionable guidance to industry and create a consistent enforcement standard. The FTC's Bureau of Consumer Protection will establish a dedicated task force to proactively monitor the data broker market for violations, using its subpoena power to compel testimony and document production⁹². This moves the Act from a passive, complaint-driven model to an active watchdog function. The FTC will also levy sustainable fines on a per-violation, per-day basis. Following the precedent of Senator Warren's Health and Location Data Protection Act, penalties must be severe enough to deter profitable non-compliance, treating violations as a cost of business rather than a minor regulatory slip. The proposed \$1 billion in funding over ten years from Warren's Act underscores the resource level required for this aggressive enforcement mandate⁹³. The Digital Bodyguard Act would require a similar dedicated, mandatory appropriation to the FTC's Bureau of Consumer Protection to avoid enforcement decay.

To ensure compliance, there will be different procedures for different groups. For data brokers and tech companies, the Act will direct the FTC to create a voluntary but incentivized certification program for apps and wearable devices. To achieve certification, a company must demonstrate that its data practices, architecture, and user interfaces comply with the Act's strict standards. Certified companies would benefit from a presumption of compliance and a powerful market differentiator. Major data brokers will be mandated to undergo independent, third-party audits every two years that must not only check data inventories but also examine the models used for advertising targeting or user categorization to ensure they are not illegally inferring "sensitive health data" as defined by the Act. These audits will verify that the company does not collect, sell, or share sensitive health data, with audit summaries submitted directly to the FTC. Crucially, any evidence obtained or derived in violation of this rule will be subject to the exclusionary rule, barring any evidence traceable to an illegal data collection - including any inferences law enforcement draws from such data - from being used in any judicial or administrative proceeding.

⁹¹ Andy, "FTC Must Reinstate Its Core Mission."

⁹² Andy, "FTC Must Reinstate Its Core Mission."

⁹³ Sen. Warren, "S.4408 - 117th Congress (2021-2022)."

For government and law enforcement agencies, the Act will explicitly prohibit all law enforcement agencies (local, state, and federal) from using any data regulated under this Act to investigate, prosecute, or secure warrants related to reproductive healthcare. Crucially, any evidence obtained or derived in violation of this rule will be subject to the exclusionary rule, barring any evidence traceable to an illegal data collection from being used in any judicial or administrative proceeding⁹⁴. This creates a direct and powerful legal disincentive for prosecutors and police.

The success of the Digital Bodyguard Act will be measured by a combination of outcome-based and enforcement-based metrics, moving beyond simple activity tracking to assess real-world impact. To measure the outcome of this Act, a reduction in data-based prosecutions and a reduction in commercially available data would indicate that the Act has had some success. This will be seen in a year-over-year decrease in the number of criminal cases where digital data is used as evidence in abortion-related investigations. The FTC will track and report on the volume of datasets made up of sensitive health data available for purchase on the data broker market. A key leading indicator will be a reduction in the volume and specificity of sensitive audience segments available for purchase on major advertising platforms. The FTC can monitor this through controlled audit studies and tracking their availability over time. A measurable decline in these segments would signal that platforms are no longer collecting, inferring, or selling the underlying data, providing an early, market-based validation of the Act's effectiveness before criminal cases or enforcement actions ever reach the courts. The FTC can also measure user sentiment and trust, such as through surveys on willingness to use digital health tools post-Dobbs, to indicate whether the Act is reversing the chilling effect. The guarantee of federal safeguards for their data will also increase consumer trust for companies.

It is also important to measure enforcement and compliance. This would include tracking FTC enforcement activity, such as the number of investigations launched, warning letters issued, and final enforcement actions completed. It would also be important to track the amount of private litigation, such as the number of private right of action lawsuits filed and their outcomes. A high number of successful suits indicates both widespread compliance issues and a functioning citizen-enforcement mechanism. The metrics derived from audit reports and certification programs would also be important metrics to track, as they would show the proportion of the industry adhering to the new standards. The dedicated taskforce at the FTC

⁹⁴ "Exclusionary Rule," LII / Legal Information Institute, accessed November 17, 2025, https://www.law.cornell.edu/wex/exclusionary_rule.

for data broker oversight can employ data lineage and network analysis tools to map the flow of data from apps to brokers to end buyers, identifying choke points for enforcement.

To prevent regulatory stagnation, a formal and transparent assessment process would be institutionalized. To increase transparency with the public and accountability, the FTC would maintain a public, online dashboard displaying key enforcement metrics, a summary of concluded cases (with sensitive details redacted), and the status of the certified products list. This ensures accountability to the public and provides valuable data to researchers and advocates. In addition, Congress would mandate a report from the FTC and Government Accountability Office (GAO) every three years. This report would assess the Act's impact based on all performance metrics, evaluate the efficacy of the enforcement strategies, and identify any emerging technological or legal loopholes.

The three-year review would serve as the formal trigger for necessary legislative updates, ensuring the law evolves in response to new challenges. Based on the findings, Congress could expand protected categories if new data types are weaponized, strengthen penalties and incentives if fines are an insufficient deterrent, and close identified loopholes to address novel legal arguments or technological workarounds.

The Digital Bodyguard Act's long-term efficacy is secured by a closed-loop system of enforcement, measurement, and adaptation. The FTC, empowered with clear rules and sufficient funding, serves as the primary public enforcer, while a private right of action creates a powerful, decentralized deterrent. Success is measured not merely by enforcement actions but by the ultimate metric - a tangible reduction in the weaponization of data against individuals. Regular, evidence-based congressional review ensures the law remains a dynamic and effective shield against digital surveillance.

The primary challenge will be ensuring consistent political will and funding for the FTC across different administrations, safeguarding the agency's capacity for aggressive enforcement regardless of the political climate. As that is likely to be a challenge, legislators should consider the possibility of sunset provisions to force review, or locking funding via trust funds. Continuous vigilance will be required to adapt to rapidly evolving surveillance technologies, particularly advanced AI inference models that may create new privacy threats. To that end, legislative reforms are necessary to protect fundamental liberties in a political environment where more foundational structural reforms, such as constitutional equality, remain unrealized.

Ultimately, the necessity of the Digital Bodyguard Act is a damning indictment of our current societal structure. This legislative reform is required not due to a simple policy gap, but

because our legal and political systems are built to uphold patriarchy and white supremacy. The weaponization of data is not an anomaly. It is the modern manifestation of a centuries-old project to control bodily autonomy, particularly that of women, people of color, and LGBTQ+ individuals. So long as the fundamental principles of bodily autonomy and true gender equality remain unenshrined in our constitution, the state will always find new tools. Empowered by patriarchal and capitalist imperatives, it will reach for dormant archaic laws and build digital dragnets to police, to punish, and to perpetuate its power. The pursuit of this statute is necessary precisely because the more profound, structural reforms that would guarantee equality remain, for now, a promise denied.

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